

School: Sheringham Community and Primary and Nursery **Date:** 13/09/23

Report: Remote consultation

DPE: Stuart Lee

Staff members: Zoe Law

Introduction

The school has previously had two changes with DPE consultants and Zoe was keen to ensure the school continued to get VfM from the DPE subscription. The meeting was arranged to support the school with any outstanding data protection compliance actions and determine a plan/actions that can be worked on for 2023/24. This included arranging an onsite visit and remote for the Autumn term 2023. The initial focus was on:

- Compliance documents
- Staff training and awareness
- Arranging a follow up remote and visit including an audit walk

Follow up actions are detailed below:

Retention schedule and Goddard enquiry

SL escalated a query Zoe had in relation to the Goddard enquiry and retention of data. The school has been keeping records of HR indefinitely until this was clarified. The school needed clarification relating to text in the NCC Model HR Document Retention Schedule G320d. The query was with the following wording:

**IMPORTANT NOTE: The Goddard Inquiry currently requests the retention of all data relating to people who work with children until otherwise informed. When this judicial review is complete, the normal retention periods outlined in this document are likely to apply.*

SL followed up with DPE and the following advice has been given:

Normal HR records should be kept in line with the IRMS/NCC retention schedule.

The retention period for records known to relate to allegations, or cases of child sexual abuse should be kept for 75 years with appropriate review periods."

<https://www.iicsa.org.uk/reports-recommendations/publications/inquiry/final-report/ii-inquiry-conclusions-and-recommendations-change/part-h-supporting-victims-and-survivors/h5-access-records.html#:~:text=The%20retention%20period%20for%20records,years%20with%20appropriate%20review%20periods.>

Compliance documents:

SL reviewed the schools compliance documents (via school website) and ascertained that the documents displayed will require updating at some point. **Although not all the following**

documents are statutory to have displayed on the website the initial documents to be updated include:

- Data protection policy
- General privacy notice
- Student/parent privacy notice
- Workforce privacy notice
- Supplier/third party list – referenced in each notice, who you share information with

Actions:

- The school to update the data protection policy and privacy notices (December 2023).
- The third-party supplier list to be displayed on the school website and the following wording added to the individual privacy notices – who you share information with:
For a full list of suppliers and third parties the school shares information with, please refer to the third party/supplier list available on the data protection section of the school website.
- SAR and data breach procedures can also be displayed on the school website although this is optional.

All the above documents can be located within the [compliance best practice](#) area and examples of layouts and maintenance routines can be located in the [schools and trusts best practice area](#) (return to school, maintenance tasks tabs and website example tabs).

Additional documents to check you have include:

- [Consent policy](#) (December 2023 review)
- [FOI/publication scheme](#) (the publication scheme can be added as an appendix in the current policy (December 2023 review)
- [Retention schedule](#) (ongoing)

Staff training and set ups

The DPE records show that the school has been proactive, and staff have completed various DPE training modules. Zoe is currently rolling out GDPR refresh training for all staff.

Staff also have the option of completing additional training such as password management etc depending on their role.

The school recently had an audit by Norfolk Police (cyber) who completed an independent cyber/information security audit. The school is confident they are completing everything that they should regarding cyber security. Data protection training is part of the induction process for new staff.

Actions:

- SL suggested staff also complete [NCSC cyber security training for school staff](#) (Spring term)

Note: the DPE cyber and information security best practice area can be located [here](#). There is also an info/cyber security checklist that the school has the option of completing as a follow up from the recent audit.

Other discussions

- Sending 'to-do' emails for training and suggestions for improving the monitoring of who had completed training and when. **Note:** SL escalated to JE who is investigating improvements to functionality.
- Demo of new features (schools and trusts best practice area) and latest news.
- Record of Processing and supplier due diligence (next steps).
- Data retention.

Follow ups and next steps:

- Complete the above actions including updating compliance documents at the next policy review (December).
- Physical audit walk to be completed.
- Focus on risk management and cyber/information security.
- Record of processing and supplier list update.
- Additional compliance document considerations.